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"Like a City Ablaze": The Third Sex and the Creation of Sexuality in Jain Religious Literature

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THE PROPOSITION THAT sexuality *tout court,* freed from the excess baggage of social status, gender role, and other factors, was uniquely constructed in the modern West, has been central to the young discipline of the history of sexuality, and has been tenaciously defended by most of its practitioners.[1] This notion of sexuality, often labeled as "constructionist," has been defined by David Halperin as implying that "human beings are individuated on the level of their sexuality, that they differ from one another in their sexuality and, indeed, belong to different types or kinds of being by virtue of their sexuality."[2] Halperin states elsewhere

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[1] See representative statements of this position in David F. Greenberg, *The Social Construction of Homosexuality* (Chicago, 1988), pp. 397–488; David M. Halperin, *One Hundred Years of Homosexuality* (New York, 1990), pp. 15–40; and John J. Winkler, *The Constraints of Desire* (New York, 1990), pp. 3–4. The locus classicus for this view is found in Michel Foucault, *The History of Sexuality: An Introduction,* vol. 1 of *The History of Sexuality,* trans. Robert Hurley (New York, 1978), pp. 42–43.

[2] David M. Halperin, "Is There a History of Sexuality?" in *The Lesbian and Gay Studies Reader,* ed. Harry Abelove, Michèle Aina Barale, and David M. Halperin (New York, 1993), p. 417.

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that prior to the writings of Freud and Havelock Ellis it "never seemed to have entered anyone's head [that] sexual object choice might be wholly independent of such 'secondary' characteristics as masculinity or femininity."[3]

There are several counterexamples to the constructionist thesis that can be drawn from premodern and non-Western cultures. On closer examination, however, most of them are subject to alternative interpretations. For example, the literature of Western classical antiquity contains numerous descriptions of a class of males at least partly defined by their sexual behavior, the Greco-Roman *cinaedus*.[4] However, the *cinaedus*'s connection with nonnormative gender and social roles may rule it out as strong evidence for the autonomous existence of sexuality in the premodern world. The classical Western medical literature also recognizes categories of persons held to be physiologically and/or psychologically distinct from the norm, some of whom are distinguished primarily on the basis of their preferred sexual practices.[5] However, the association of such figures as the *mollis* to the female gender role could raise the objection that sexuality in the modern sense is not what is being described in these texts.[6] A more promising line of enquiry may be on Hellenistic astrological texts, which do posit innate, permanent sexual orientations and inclinations based on astrological factors and thus are not necessarily bound up with gender role or physiology.[7] Early modern Europeans may also have had the concept of a sexual "nature," but this is later than the period in question.[8]

[3] Halperin, *One Hundred Years,* p. 16.

[4] On the *cinaedus* (*kinaidos* in Greek) see Amy Richlin, "Not before Homosexuality: The Materiality of the *Cinaedus* and the Roman Law against Love between Men," *Journal of the History of Sexuality* 3 (1993): 523–73, as well as her *Garden of Priapus: Sexuality and Aggression in Ancient Rome,* rev. ed. (New York, 1992).

[5] Essentialist views on male receptive sexuality were expressed by Aristotle in *Nicomachean Ethics* 1150.12–16, and in a much later work ascribed to him, the *Problemata Physica* 897b1–14, 28, 880a5. On the psychopathology of the anal-receptive, cross-dressing *mollis* (equivalent to the *cinaedus*) see Caelius Aurelianus, *On Acute Diseases and on Chronic Diseases,* trans. I. E. Drabkin (Chicago, 1950), pp. 901–5.

[6] This is in fact the argument made by Halperin, *One Hundred Years,* pp. 21–24, in his analysis of Caelius Aurelianus.

[7] Eugene Rice, "Ancient Origins of Modern Homophobia" (lecture delivered at the University of Wisconsin—Milwaukee, March 23, 1995). On this subject see John Boswell, *Christianity, Social Tolerance, and Homosexuality* (Chicago, 1981), p. 52, n. 28; Giuseppe Bezza, *Commento al Primo Libro della Tetrabiblos di Claudio Tolemeo* (Milan, 1990), p. 92; Julius Firmicus Maternus, *Ancient Astrology: Theory and Practice,* trans. Jean Rhys Bram (Park Ridge, IL, 1975), pp. 207–8, 210, 214, 218, 248–49.

[8] See the argument concerning the appeals to a hermaphrodite's nature, in the sense of attraction to one sex or the other, in deciding his/her "true" sex, in Lorraine Daston and Katherine Park, "The Hermaphrodite and the Orders of Nature: Sexual Ambiguity in Early Modern France," *GLQ: A Journal of Gay and Lesbian Studies* 1 (1995): 519–38.

Turning to Asia, we find that in the Indian medical tradition, which is not central to the Jain texts that form the central focus of this article, the main criterion for membership in alternative sex/gender categories is the lack or nonexercise of procreative or generative capacity, and not sexual practices or desires per se.[9] In Japan, writers in the Tokugawa era (1600–1868) held that there existed a class of men with exclusively same-sex interest, the *onna-girai,* or woman-haters.[10] This has been largely ignored in discussions of the evolution of sexuality, possibly for two main reasons: the general lack of awareness of, or interest in, non-Western data by historians of sexuality[11] and the fact that the Japanese took this concept for granted, as the reflection of a contemporary social reality, without hazarding any theoretical explanations of it.

It is among the Jains that we have more definitely identified a premodern delineation of a concept of sexuality in something approaching its modern sense. The Jains are an important Indian minority religious community with a history of over twenty-five hundred years and a vast literature in Sanskrit and other Indic languages that has, until recently, been little known in the West except to a small number of specialists.[12] Because they shared the pan-Indian acceptance of a third sex, the Jains, like many other Indian schools of thought, were led to speculate on what the nature (*svabhāva*) of such a third-sex person might be, as compared to that of a man or a woman. As it turned out, the residual or even redundant category of a third sex served as a focal point for speculations that ultimately resulted in the formation of an autonomous idea of sexu-

[9] On the Indian medical literature see Michael J. Sweet and Leonard Zwilling, "The First Medicalization: The Taxonomy and Etiology of Queerness in Classical Indian Medicine," *Journal of the History of Sexuality* 3 (1993): 590–607. On the criteria for membership in the third-sex categories see pp. 592–94.

[10] See Ihara Saikaku, *The Great Mirror of Male Love,* trans. Paul G. Schalow (Stanford, CA, 1990), p. 4.

[11] Sweet and Zwilling, p. 591, n. 4.

[12] The best general introduction to the Jain religion, in its historical and social as well as doctrinal aspects, is Paul Dundas, *The Jains* (London, 1992); Padmanabh S. Jaini's landmark *The Jaina Path of Purification* (Delhi, 1979) gives a more detailed account of Jain writings and doctrines. We here use the contemporary form "Jain" rather than the Sanskrit "Jaina" found in many Indological writings. There are somewhat over three million Jains in India today, mainly concentrated in Western India, in the states of Rajasthan, Gujarat, Maharashtra, and Karnataka (Dundas, p. 3). Jainism has survived uninterruptedly in India since the fifth century B.C.E., unlike Buddhism, its contemporary or slightly younger cognate mendicant (*śramaṇa*) movement; for speculations on the reasons for this, see Padmanabh S. Jaini, "The Disappearance of Buddhism and the Survival of Jainism," in *Studies in the History of Buddhism,* ed. A. K. Narain (Delhi, 1980).

ality. The primary objective of this article is to demonstrate that Jain thinkers, living and writing long before the modern era and in a sociocultural context very different from our own, developed a full-fledged conception of sexuality that meets the criteria cited above, a sexuality that is often, but not invariably, linked to gender nonconformity and biological sex.

THE THIRD SEX

The acceptance of the category of a third sex has been a part of the Indian worldview for nearly three thousand years. The concept took form during the late Vedic period (eighth to sixth centuries B.C.E.) on the basis of observed male gender-role nonconformity. Men who were impotent, did not impregnate women, were effeminate, or transvestite, were regarded as *napuṁsaka*, literally "not-a-male," that is, unmale. Such unmales constituted a distinct though stigmatized social group, with institutionalized roles as practitioners of traditionally female occupations: singers, dancers, and later, prostitutes.[13] The adoption of *napuṁsaka* as the technical term for the third grammatical gender circa the sixth century B.C.E.[14] may be regarded as signaling the acceptance of the unmale as a true third sex.[15] However, as a grammatical term, *napuṁsaka* was interpreted to mean "neither male nor female," and this interpretation was now applied to those persons who were previously viewed as being males not conforming to gender-role expectations, resulting in their being regarded as persons of ambiguous sex. This element of ambiguity was to play a role in the later Jain conception of third-sex sexuality. In addition, by the beginning of the common era the third sex, like the two other sexes, was held to be determined at conception by purely biological causes, and it is quite possible that it was among the schools of traditional medicine that a term actually meaning "third sex" was introduced.[16] This term, *tṛtīyāprakṛti*, literally "third basic

[13] For a review of cross-dressing and transsexualism in epic and religious literature interpreted from a psychoanalytic perspective, see Robert P. Goldman, "Transsexualism, Gender, and Anxiety in Traditional India," *Journal of the American Oriental Society* 113 (1993): 374–401. See also Wendy Doniger O'Flaherty, *Women, Androgynes, and Other Mythical Beasts* (Chicago, 1980), pp. 297–334.

[14] *Śatapatha Brāhmaṇa* (*ŚB*) 10.5.1.2–3.

[15] These are some of the conclusions reached in our paper on the early formation of the third-sex concept, currently being prepared for publication.

[16] Sex is held to be determined at the time of conception, dependent on the predominance of either the father's seed or the mother's blood, in which case the child will be either male or female, respectively. When blood and seed are in equilibrium there will be birth as a *napuṁsaka*. The notion of the third sex as an equilibrium is expressed in the belief that

form,"[17] would appear to have gained universal acceptance by the fourth century, when it is found included in the standard classical thesaurus as an equivalent for *napuṁsaka*.[18] As early as the fifth century C.E. the Jains themselves had used such terms as *tṛtīya* ("third") and *trairāśika* ("third heap," after an archaic Jain heresy) to refer to persons of the third sex.[19] The class of transvestite singers, dancers, and prostitutes known as *hijras* are the contemporary representatives of the unmales and third sex of earlier times.[20]

A number of the more important schools of classical Indian thought have discussed the third sex to some extent, the Jains more thoroughly than most. Emerging immediately after the late Vedic period (800–600 B.C.E.), the Jains, although heterodox, inherited not only the conception of a third sex, but also a set of terms for referring to the members of that class. In addition to the aforementioned *napuṁsaka*, there is also the *klība*, or the sexually defective man[21] and the *paṇḍaka*, perhaps originally

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the third-sex fetus develops in the center of the womb, rather than on the right or left sides as with males or females. For a summary of the Jain sources that treat conception and embryology see Walther Schubring, *The Doctrine of the Jainas Described after the Oldest Sources* (New Delhi, 1962), pp. 141–42, as well as the same author's *Taṇḍulaveyāliya: Ein Paiṇṇaya des Jaina-Siddhānta: Textausgabe, Analyse und Erklärung* (Mainz, 1965). The Jain view is essentially identical to that of the traditional Indian medical system (*āyurveda*) and was very likely a part of the common body of third-sex lore; see Sweet and Zwilling, pp. 594–97. Third-sex persons are held to be anatomically different from both men and women in certain minor ways, though they are closer to the latter, in harmony with the general view of the third sex as a feminized, unmanly male; e.g., men have 700 veins and 500 muscles; women, 670 veins and 470 muscles; *napuṁsakas* (here called *paṇḍaga*), 680 veins and 480 muscles; see Schubring, *Doctrine*, p. 143. An association of the right side with a male child, and the left with a female was also made by the Greeks and the Chinese; see Hanns Oertel, "Contributions from the Jāiminīya Brāhmaṇa to the History of the Brāhmaṇa Literature," *Journal of the American Oriental Society* 26 (1905): 190.

[17] *Caraka* 4.2.25b. It should also be noted that *prakṛti* can often be translated as "nature," as in the case of its derivative *prākṛta* for "natural language" in contrast to *saṃskṛta*, artificial or literary language. This suggests that the third sex, along with the other two sexes, was regarded as a natural category in India.

[18] *Amarakośa* 2.6.39. On the date of this work, see A. A. Ramanathan, ed., *Amarakośa* (Madras, 1971), p. xxi.

[19] For *trairāśika* (Prakrit *terāsi*) see, e.g., the list of forty unfit donors at *Piṇḍa* 572–77; *Nisī Bhā* 5217; *Bṛh Bhā* 2572, 2575; for *tṛtīya* (Prakrit *tatia*) see *Nisī Cū* 3564; *Bṛh Bhā* 5170.

[20] The most complete study of the *hijras* to date is Serena Nanda, *Neither Man nor Woman: The Hijras of India* (Belmont, CA, 1990). See also ethnographic accounts in G. Morris Carstairs, *The Twice Born: A Study of a Community of High Caste Hindus* (Bloomington, IN, 1967), pp. 59–61; and James Freeman, *Untouchable: An Indian Life History* (Stanford, CA, 1979), pp. 294–315.

[21] The nature of the *klība*'s defect is suggested by the later *Bṛhadāraṇyaka Upaniṣad* 6.1.12; "*klības* not procreating with semen" (*klībā aprajāyamānā retasā*). The sexual na-

meaning "impotent" or "sterile," both of whom are associated with transvestism and dancing.[22]

Beginning as a movement of wandering ascetics, and becoming in time a powerful, monastically based religious community, Jainism had a strong practical interest in controlling the sexuality of its monks and nuns. In common with most other Indian renunciant movements, Jain ascetics were normatively celibate, and the prestige and power of the Jain community partially depended on public confidence in the "purity" of the Jain monks and nuns. Those of the third sex could not be ignored either as "insiders," which led to discussions of their status as monks or lay followers, or as "outsiders," members of the society at large with which Jain ascetics had to interact. Thus, we find that it is in the treatises of monastic jurisprudence that such questions are examined in the exhaustive and luxuriant detail at which Jain scholiasts excel, even by the standards of the highly analytical Indian scholastic literature in general. It is largely from these texts that we get a picture of third-sex persons as a social reality, a facet of Indian life almost completely ignored by cultural historians of ancient India.

In addition to the purely practical interests that motivated monastic law, the Jains also had a deep theoretical concern with sexological matters, because it was the very definitions of the sexes themselves that lay at the heart of one of the most important of the intra-Jain debates: whether or not women can attain spiritual liberation (*mokṣa*).[23] It is their difference of opinion on this point (as well as a few others) that doctrinally divides the two major Jain orders, the Śvetāmbara and the Digambara.[24] Since the controversy hinges on the identification of the quality or sign necessary to designate a person as a woman, such an inquiry by necessity involved an examination of what it meant to be male, and neither male nor female, as well. It is for both these pragmatic and theoretical reasons that Jain literature constitutes perhaps the single richest source for knowledge of the third sex, as well as for speculations on sex and gender, to be found in India from the ancient to medieval periods.

ture of the *klība*'s defect is accepted by all the developed Indian traditions. *Klība*-hood may be an acquired condition as, e.g., when the penis is destroyed by fire, as in *ŚB* 1.4.3.19.

[22] *Atharva Veda* (*AV*) 8.6.7, 11.16. The etymology of *paṇḍaka* is unknown, but cf. *baṇḍa* at *AV* 7.65.3 glossed by the commentator as *nirvīrya* ("impotent").

[23] The only previous study of gender in Jain texts is Padmanabh S. Jaini's valuable and detailed *Gender and Salvation* (Berkeley, 1991), which focuses on the intra-Jain controversy over the spiritual liberation (*mokṣa*) of women. Paul Dundas (letter to Leonard Zwilling and Michael J. Sweet, July 17, 1995) is of the opinion that this controversy was a "spinoff from the more central question of ascetic nudity" and did not become important until the medieval period, beginning around the sixth or seventh century C.E.

[24] The Śvetāmbaras, or White-Clad, are so called because of the white robes worn by their mendicants; the Digambara, or Sky-Clad, hold that nudity is the rule for those males who seek final enlightenment, and that women are debarred from the highest spiritual accomplishments. See Dundas (n. 12 above), pp. 40–52, for the history and delineation of sectarian differences.

SEXUALITY AND SEXUAL ORIENTATION

Indian speculation on the characteristics by which a person can be identified as belonging to one of the three sexes arose in the context of examining the relationship between natural gender or sex, and grammatical gender. It will be recalled that the adoption of the term *napuṃsaka* involved the interpretation "neither male nor female"; this is the view that formed the background for inquiry into natural and grammatical gender and led to some of the difficulties that were later to emerge. Among those who were considered neither male nor female was the "long haired man" (*keśavan*), and the aforementioned sexually defective, impotent man. Although both are recognized as males, and hence not females, their gender role nonconformity expressed in long hair and impotence assimilates them to females—thus, they are not truly males.[25] From this we can conclude that early on long hair was a recognized marker for a woman, and potency for a man; thus, the presence of the former or absence of the latter in a male were the two distinct signifiers of third-sex membership. What is foreshadowed here are the two basic views promulgated by the Brahmanical (i.e., "Hindu") schools concerning the essential markers for sex assignment.

The exploration of the relationship between natural and grammatical gender was based on two assumptions: that gender is a property belonging to objects, and that objects, as well as persons, are gendered by the presence or absence of certain defining characteristics. This intimate connection between sex and grammatical gender is expressed by the fact that the word *liṅga*, or sex,[26] was adopted as the technical term for grammatical gender, a move that precipitated much confusion and complexity. By the third century B.C.E. two views had developed about the characteristics that define gender: the first view, which is anticipated by the gender analysis of the long-haired man, is that gender is characterized by the presence or absence of the primary and secondary sexual characteris-

[25] Technically, in this early discussion, the third sex is distinguished as "neither female nor male," and so the unmale was seen as not male because of his long hair, but also not female because of his maleness in other respects. Similarly, his impotence was the mark of his nonmaleness, but, like the long-haired man, he still was not a female, on account of his other masculine characteristics.

[26] The original sense of *liṅga* is "characteristic mark or sign" (*Nirukta* 1.17); later on it comes to mean "sexual characteristic" in general, and "penis" in particular.

tics.[27] The second view, anticipated by the analysis of the sexually defective man, is that gender assignment is based on the presence or absence of procreative or conceptive ability. Both views, however, were criticized and rejected by the Jains on the grounds that they were inadequate to determine sex, as we shall show below in discussing their handling of the relationship between biological sex, gender role, and sexuality (pp. 374–76).

As for the Buddhists, their position most closely approximates that of the first of the Brahmanical views, that is, that the sexes are distinguished on the basis of the primary and secondary sexual characteristics.[28] Although the third sex is not explicitly treated as a distinct class of persons in Buddhist literature, a number of recognized third sex types are discussed, some of whom are defined in terms of their sexual, specifically homosexual, behavior and not on the basis of their possession or non-possession of certain external characteristics.[29] The Jains found the above views wanting, and went beyond the mere citation of sexual behavior as a marker of sex in the case of the third-sex subtypes, looking instead at an underlying sexuality motivating the sexual behavior of all the sexes. While such a conception of sexuality most probably does not belong to the oldest strata of Jain doctrine it is certainly quite old, since it is accepted by both major sectarian divisions and thus most probably antedates their schism in the early centuries of the present era.[30]

While the Jains inherited the basic concept of three sexes, they did not, at least in the canonical literature, use the standard term *liṅga* for biological sex (with one noteworthy exception) or even for grammatical gender[31]

[27] This position is presented straightforwardly in the third-century B.C.E. linguistic classic, *Mahābhāṣya* (*The Great Commentary*) 4.1.3: "[Q:] What is it that people see when they decide, this is a woman, this is a man, this is neither a woman nor a man? [A:] That person who has breasts and long hair is a woman; that person who is hairy all over is a man; that person who is different from either when those characteristics are absent, is neither woman nor man [*napuṁsaka*]."

[28] *Abhidharma Kośa* IV.14 c. Here the author glosses *liṅga* by its synonym *vyañjana*. *Vyañjana*, sexual characteristic or sex organ, it is worthwhile pointing out, is cognate with *vyakti*, which, like *liṅga*, is employed in the grammatical literature in the sense of grammatical gender, again pointing to a basic belief in a connection between natural sex and grammatical gender.

[29] See Leonard Zwilling, "Homosexuality as Seen in Indian Buddhist Texts," in *Buddhism, Sexuality, and Gender*, ed. José Cabezón (Albany, NY, 1992), pp. 204–6.

[30] See Dundas, pp. 40–44.

[31] In the discussion of language, including grammatical gender, see *Paṇṇa* 832–57 in *Prajñāpanāsūtram* (Bombay, 1969–71); similarly in *Ṭhā* 113, in *Sthānāṅgasūtram and Samavāyāṅgasūtram* (Delhi, 1985); and *Ācā* in *Ācārāṅgasūtra and Sūtrakṛtāṅgasūtra* (Delhi, 1985). The *Ācā*[*raṅgasūtra*] is available in the translation by Hermann Jacobi in *Jaina Sutras*, vol. 22 of *The Sacred Books of the East* (Oxford, 1882; reprint, New Delhi, 1964).

but retained a rather concrete portion of the original sense of this word and applied it only to the external insignia or paraphernalia that were held to be characteristic of Jain mendicants, non-Jain mendicants, or laypeople.[32] In place of *liṅga* they introduced their own term, *veda*.[33]

Veda (like *liṅga*) was used in more than one sense; in addition to meaning physical sex, it also refers to a psychological state (*bhāva*). It is this aspect that, following a traditional etymology, we translate as "feeling," that is, sexual feeling or sexuality.[34] *Veda*, as sexual feeling, frequently appears in later canonical literature where the three types of sexuality—male, female, and third sex—were already recognized as distinct entities by their assignment as three of the nine subsidiary passions (*nokaṣāya*).[35] Nevertheless, it is explicitly viewed as sexuality in only a single passage in the canonical literature where male sexuality (*puru-*

[32] Compare *Uttarā* 20.43, 23.32, 29.42, in *Daśavaikālika Sūtra, Uttarādhyāyana Sūtra, Āvaśyaka Sūtra* (Bombay, 1977); also *Paṇṇa* 1.16 where the emblems of the Jain mendicant, non-Jain mendicant, and householder are called *svaliṅga, añya-*, and *gṛhi-*. For the Śvetāmbaras, *liṅga*, as we have already seen above, is used to refer to the characteristic marks of religious practitioners or laymen, where, e.g., the *dravyaliṅga* or material sign of a Jain ascetic will be his whisk broom, mouth cover, etc., and the *bhāvaliṅga* or psychological sign, his religious vows; see Nathmal Tatia, *Aspects of Jaina Monasticism* (Ladnus, 1981), p. 67. For more on the *dravyaliṅga* and *bhāvaliṅga* see n. 59 below. A still useful, and readily available, translation of the Uttarā[dhyāyana Sūtra] is that by Hermann Jacobi in *Jaina Sutras*, vol. 45 of *The Sacred Books of the East* (Oxford, 1900; reprint, New Delhi, 1964).

[33] The adoption of *veda* as a technical term for sexuality could be construed as a stunning insult to the Brahmins, for whom it meant sacred knowledge and scripture. This is in keeping with the Jain revalorization of other Brahmanical terms, such as *pudgala* to mean "matter" rather than "person," or *dharma* to mean "motion" rather than "religious duty." Such revalorization can be seen as being of a piece with the Jains' satirical revisions and reworkings of the Hindu epics and sacred histories (*purāṇas*); see Dundas, pp. 201–6.

[34] On *veda* as feeling see Śīlāṅkācārya on *Sūya* 1.2.1. For *veda* in the sense of biological sex, cf., e.g., *Sama* 156. Here the distribution of the three sexes as found among the various orders of living things is presented; e.g., hell dwellers are *napuṁsaka*, i.e., sexless, only; demigods (*asura*) are male and female only; humans and other five-sensed, womb-born animals, are of three sexes, etc. However, it should be noted that in other places where the distribution of the sexes is treated they are referred to simply as male (*puruṣa*), female (*strī*), or neither (*napuṁsaka*), as in the second chapter of the *Jīvā* in *Uvaṅgasuttāṇi* (Ladnun, 1987). A translation of *Sūya*, i.e., *Sūtrakṛtāṅga*, is available in vol. 45 of *The Sacred Books of the East*.

[35] Strictly speaking, in the Jain system *veda* is a type of *karma*, i.e., a form of subtle matter (for non-Jains the basic meaning of *karma* is "action"). This matter, through the performance of certain actions, comes to adhere to the soul. When this *karma* is activated, it manifests in the form of sexual desire. As a type of *karma* see *Uttarā* 29.7 where the three *vedas* are explicitly recognized as such when added to the list of *nokaṣāyas*. At *Paṇṇa* 1691 and *Ṭhā* 9.3.700 the list of *nokaṣāyas* begins with the three *vedas*, at *Uttarā* 32.102. They appear at the end of the list, their usual placement. *Paṇṇa* 1699 gives the maximum and minimum durations of the three *nokaṣāyavedakarmas* with the male *veda* being the

ṣaveda) is explained as sexual desire for a woman, and female sexuality (*strīveda*) as sexual desire for a man.[36] While the sexuality of third-sex persons (*napuṁsakaveda*) is not defined quite as directly, the character of that sexuality is quite clearly exposed by passages in the canon that view persons of the third sex in the same light as women, that is, as potential dangers to the chastity of monks, as reflected in the many injunctions against associating with them.[37] From these passages we may infer that sexual desire for a man forms at least one aspect of third-sex sexuality. In a set of similes descriptive of the relative intensities of the sexualities of the three sexes, that of the third sex is viewed as the most intense of all: a woman's *veda* is compared to a dung fire, a man's to a forest fire, but the third sex's is compared to a burning city.[38] Thus third-sex persons are not only sexual persons, but hyperlibidinous ones at that. This belief in their hypersexual nature forms a basis

shortest, and *napuṁsakaveda* the longest. Since the duration of the *karmas* depends on its strength, and the longer the duration the more deleterious it is, the *napuṁsakaveda* is the worst, and *puruṣaveda* the best; see Helmuth von Glasenapp, *The Doctrine of Karman in Jain Philosophy* (Bombay, 1942), p. 23. Those possessing *puruṣaveda* are smallest in number, those who are *napuṁsakaveda* the most numerous; *Viyāha* 6.3.29 in *Vyākhyāprajñāpti Sūtra* (Bombay, 1974–82). Compare also *Paṇṇa* 253. Of the three *vedas,* only the male is considered auspicious; cf. *Tattvārthasūtra* (*TS*) 8.26. An especially useful translation of the *Tattvārthasūtra,* which is the principal work of Jain dogmatics and one of the few treatises accepted by both Śvetāmbaras and Digambaras, is that by Nathmal Tatia, *That Which Is* (San Francisco, 1994). The *Viyāha* or *Vyākhyāprajñāpti Sūtra* (also known as the *Bhagavatī*), a vast work of an encyclopedic character, is available in a partial translation by K. C. Lalwani, *The Bhagavatī Sūtra,* 4 vols. (Calcutta, 1973–85).

[36] See *Viyāha* 2.5.1. The question under discussion is whether monks who die and become gods enjoy heavenly consorts or create them out of themselves, and thus experience two sexualities (*veda*), female and male, at one and the same time. The correct view presented is that it is not the case that they experience two sexualities, for a soul experiences only one sexuality at any one time, either female or male. When the female sexuality has arisen he does not experience male sexuality and vice versa ("itthiveyassa udaeṇaṁ no purisavedaṁ veei"). When the female sexuality is aroused a woman desires a male ("itthī itthiveeṇaṁ udiṇṇeṇaṁ purisaṁ patthei") and when the male sexuality is aroused a man desires a woman. It is a dogma of the Jains that there are no gods who belong to the third sex.

[37] For example, mendicants are warned that one of the dangers of drunkenness is seduction by a woman or a *klība,* see *Ācā,* p. 220. Places for sleep or rest frequented by women and *paṇḍakas* are to be avoided; see *Ācā,* p. 285: "no niggaṁthe itthīpasupaṁḍagasaṁsattāiṁ sayaṇāsaṇāiṁ sevittae siyā"; also *Thā* 663; *Sama* 9 (see n. 9); *Uttarā* 512. Moreover, monks were even warned of the possibility of rape by *napuṁsakas;* see *Ogha* 217–24; also Shantaram Bhalchandra Deo, *Jaina Monastic Jurisprudence* (Poona, 1960), p. 13.

[38] On the similes: for the Śvetāmbaras, *Jīvā* 2.74 has a cooking fire (*phuṁphuaggi*) for the female libido (however, the commentator Malayagiri points out that *phuṁphua* is a regional term for *kārīṣa,* or dung), at 2.98 a forest fire (*davaggi*) for the male, and at 2.140 the conflagration of a great city (*mahāṇagaradāha*) for the *napuṁsaka;* in the autocommentary to *TS* 8.10, Umāsvāti has straw, wood, and dung fires (*tṛṇakāṣṭhakarīṣāgni*) for the male, female, and *napuṁsaka* libidos, respectively (note the unusual order of the sexes against the customary female, male, *napuṁsaka*); for the Digambaras, Akalaṅka, in his commentary to *TS* 2.52 has a wood fire (*dāruvahni*), straw fire (*tṛṇāgni*), and a heated brick or brick kiln (*iṣṭakāgni*); Vīrasena in his commentary on *Ṣaṭkh* 1.1.101 quotes a verse giving the similes as a dung fire, a straw fire, and a heated brick or brick kiln (*kārisataṇiṭṭavāgaggi*).

for the conception of the third sex as bisexual in orientation (see below, pp. 371–74).

In general, the canon presents persons of the third sex as feminized males, in that they were effeminate and transvestite; that their sexuality should be thought of as identical to that of women is, therefore, not surprising. However, the character of third-sex sexuality as drawn from the canonical literature is not as uncomplicated as it might appear. In the injunction against a mendicant's accepting alms from a *napuṁsaka* it is pointed out that by regularly doing so both the monk and his donor may become emotionally perturbed (*kṣobhaṇa*), that is, sexually aroused, culminating in sexual relations between them. As a consequence people would have doubts about the purity of Jain mendicants and come to believe that they were "just like vile *napuṁsakas*."[39] That a *napuṁsaka* would desire to have sexual relations with a man is consonant with what was understood of his sexuality, but what of the desire of an apparently normal man to have sexual relations with one of the third sex?[40] Is the monk relating to the *napuṁsaka* as a *napuṁsaka* or as a woman,[41] and is saying that the monk is "like a *napuṁsaka*" equivalent to saying he is one? If not, then in what way does he resemble one? If he is one, then there is the problem of how he became a monk in the first place, because such persons designated as *paṇḍaka* or *klība* were explicitly denied ordination.[42]

It is questions like these that must have stimulated a reconsideration of ideas about the third sex and its sexuality, and the very nature of sexuality itself. Such a rethinking is exhibited in the late Śvetāmbara scripture known as the *Bhāgavatī.*[43] Here we find what is apparently a fourth sex

[39] *Ogha* 241–44, in Shantaram Bhalchandra Deo, *History of Jaina Monachism* (Poona, 1956), p. 303; also *Piṇḍa* 585.

[40] This possibility was recognized in *Ācā,* p. 22, when a monk is warned against drunkenness because he may lust after a woman or a *klība.*

[41] That this distinction was possible is indicated at *Ācā,* p. 257, which declares that things are to be called according to what they are, as when a monk sees persons he knows that "this is a woman, this is a man, this is a *klība.*"

[42] *Bṛh Sū* 4.1–2; *Ṭhā* 202.

[43] Like most Jain scriptures the *Viyāha* is a mosaic of parts belonging to different periods. It is likely that on logical grounds the sections that we refer to here are among the more recent, perhaps dating from the second to the fourth centuries C.E.

added to the customary triad, that is, the *puruṣanapuṁsaka* ("male-*napuṁsaka*"), in a list of persons belonging to the various mendicant orders.[44] Thus far, *napuṁsaka* has referred only to the class of feminized males who were identified by their cross dressing, feminine behavior, and sexual object choice. From its literal meaning, *puruṣanapuṁsaka* would appear to be indicative of a class of *napuṁsakas* who look, dress, and act like men.[45] Since such persons would externally be indistinguishable from "normal," gender-appropriate men, that characteristic which would make them *napuṁsaka,* that is, sexually ambiguous, can only be their sexuality, that is, their sexual desire for men,[46] and as they were considered acceptable to be ordained, their ability to "pass" obviously overrode any objection that might be raised on the grounds of their sexuality. It is also noteworthy that along with a relaxation in the rules regarding the ordination of members of the third sex, such persons were also considered capable of attaining extrasensory knowledge,[47] and in another text from this same period we also encounter the first acknowledgment that third-sex persons were, like the two other sexes, capable of attaining spiritual liberation, (although they do so in smaller numbers than the other two sexes).[48]

However, in addition to these changes in the basic attitude regarding

[44] *Viyāha* 25.6.11–12. Of the five kinds of monks, the *pulāya* (husk) may be *purisaveyaya* (having male sexual feelings) or *purisanapuṁsagaveyaya* (having male *napuṁsaka* feelings); the *bausa* (spotted) and *kūsīla* (bad) may have the sexual feelings of any of the three sexes, the last being *purisanapuṁsagaveyaya,* one having the sexual feelings of a male-*napuṁsaka.* In his rendering of the passage in question, Deleu ignores the problem posed by the male-*napuṁsaka:* "P[ulāga] belong to the male or neuter sex, whereas B[ausa] and K[usīla] belong to each of the three sexes," in Jozef Deleu, *Viyāhapannatti* (*Bhagavaī*) (Brugge, 1970), p. 282.

[45] *Nisī Bhā* 4745; cf. also *Bṛh Ṭī* 887–88. The same distinction is found at *Kāmasūtra* 2.9.1–6.

[46] As an interesting parallel see the description of quite masculine sodomites as partakers in "hermaphroditic" sins in Dante, *Purgatorio,* canto 26, cited in Daston and Park (n. 8 above), p. 424.

[47] *Viyāha* 9.31.23 (2): a person who has attained extrasensory knowledge (*avadhi*) may be of female *veda,* male *veda,* or *purisanapuṁsagaveda* (but not *napuṁsagaveda*).

[48] *Paṇṇa* 1.16; the same at *Jīvā* 8. This appears to be the only passage in the canonical literature in which *liṅga* can be construed in the sense of sex; in this stereotyped list of fifteen types of persons who attain spiritual emancipation we find *strīliṅga, puruṣa- napuṁsaka- sva- anya- gṛha-;* the last three referring to those who bear the insignia of Jain mendicants, etc., which suggests that *liṅga* with the terms for the three sexes are to be understood as "bearing the external marks of a woman, etc.," external mark or sign being the original sense of *liṅga;* see Kshitish Chandra Chatterji, *Technical Terms and Technique of Sanskrit Grammar* (Calcutta, 1964), p. 139. In what is perhaps an earlier statement of the same view at *Uttarā* 1501, the words for the three sexes appear without qualification. At *Uttarā* 1503, 108 men, twenty women, and ten *napuṁsakas* are said to achieve emancipation at the same time; see Chatterji, p. 302.

the capability of third-sex persons to lead and realize the goals of the religious life, the *Bhagavatī* hints at what can only be described as a revolutionary innovation in thinking about the relation between physical, biological sex and sexuality. Of the five kinds of monks (*nirgrantha*), those called *pulāka* ("husks") may have either male sexuality (*puruṣavedaka*) or masculine third-sex sexuality (*puruṣanapuṁsakavedaka*), but those called *bakuśa* ("spotted") and *kuśīla* ("bad") may have female sexuality (*strīvedaka*), male sexuality, or masculine third-sex sexuality. This raises the question as to how a monk, who is biologically male (or a masculine *napuṁsaka* under the new dispensation), could be reckoned as having female sexuality. If this is indeed the case and a biological male can be possessed of a sexuality "appropriate" to one of the other sexes, then would it not be equally possible for a person of any of the three biological sexes to be endowed with any of the three sexualities? And if this is so, what does it mean then to be male, or female, or third sex? Later commentarial discussions of homosexuality, bisexuality, sexual object choice, and the meaning of the three sexes provide attempts at solving such conundrums.

Up to this point, the picture that we have presented of the Jain views of sex and sexuality belongs to the period of canon formation that extended from about the fourth century B.C.E. to the fifth century C.E., just prior to the major schism within the community. In the later period, that of the canonical exegetical literature, many of the problems, questions, and implications of the views of that earlier period are explored.

Same-Sex Behavior and the Third Sex

Sexuality, or the desire for sexual intercourse (*maithunābhilāṣa*)[49] is, as previously noted, of three kinds: female, male, and third sex, and these are distinguished by the sex of the desired object. We have seen that according to the *Bhagavatī* the desire for coitus with a man defined female sexuality, and coitus with a woman male sexuality. While third-sex sexuality went unexamined in any explicit way in the canonical literature, it seems clear that this sexuality was essentially female in nature. One of the striking innovations of the exegetical period was to define third-sex sexuality as being bisexual in orientation, a position that was accepted by both Jain sectarian divisions.[50]

This definition was not, we believe, driven so much by the actual observation of the sexual behavior of third-sex persons but, rather, by theo-

[49] *Abhidhānarājendra,* s.v. *veda.*

[50] For the Śvetāmbaras see, e.g., Abhayadeva on *Sama* 156; and for the Digambaras see Vīrasena on *Ṣaṭkh* 1.1.101.

retical imperatives. One of these is the necessity to account for the hyperlibidinousness of third-sex sexuality (*napuṁsakaveda*) in the aforementioned similes, for example, "like a blazing city." Bisexuality would have naturally suggested itself as a way of accounting for this hypersexual nature, since attraction to both sexes implies a greater intensity and duration than that of either female or male sexuality alone.[51] There is, in addition, the taxonomic need to fill the slot for a distinct third-sex sexuality.

This bisexual orientation, however, was not conceived of as being due to a *napuṁsakaveda* completely separate and discrete from the *vedas* of men and women but, rather, to the possession of both *vedas;* third-sex persons are considered to be endowed with *both* male and female sexualities. The additive effect of this combination was illustrated through the use of a simile that may have formed a part of the traditional teaching on this subject. In this set of similes the three sexualities are compared to the humors (*doṣa*) of the traditional medical system, and the taste for certain types of foods with which they are associated: the expression of female sexuality in the desire for a man is like bile (*pitta*), which causes a craving for something sweet; male sexuality as expressed in the desire for a woman is compared to phlegm (*śleṣma*), which gives rise to the desire for something sour; while the third sex's desire for both men and women is like that of bile and phlegm together, which results in a craving for something both sweet and sour, such as curds mixed with sugar and spices.[52]

The definition of third-sex sexuality as the possession of both male and female sexualities relieved the Jains of the need to solve the riddle as to what the nature of a truly distinct third-sex *veda* might be. It also provided them with a convenient explanation for same-sex sexual activity, which is highly relevant to monastic discipline. One of the three

[51] See, e.g., Devendrasūri, *Catvāraḥ Karmagranthāḥ* (Piṇḍvāḍā, 1975) p. 44: "Just as a blazing city burns for a great period of time and spreads to a great degree, in the same way, when the third-sex sexuality [*napuṁsakaveda*] comes to fruition there is an intense desire to have sex with women and men which does not disappear for a great period of time, nor is there satiation in sexual relations." It should be noted that this belief in the intense heat of the third sex's sexuality was by no means a complimentary one, from the Jain point of view, since they regarded all heat other than that produced by religious austerities (*tapas*) as a defiling factor impeding spiritual growth; see Jaini, *Jaina Path* (n. 12 above), p. 105.

[52] The earliest appearance of these similes known to us is in Siddhasena's commentary on *TS* 8.10 (2.142) where they are presented in a somewhat unintelligible form. See Devendrasūri, p. 44. On the humors of Indian medicine and food tastes see A. K. Ramanujan, "Food for Thought: Toward an Anthology of Hindu Food-Images," in *The Eternal Food: Gastronomic Ideas and Experiences of Hindus and Buddhists,* ed. R. S. Khare (Albany, NY, 1992), esp. p. 229.

grounds on which a monk may be expelled from the community is homosexual behavior,[53] which is defined as "a pair of males (*puruṣayuga*) performing sexual intercourse with each other involving the mouth and anus."[54] This is attributed to the possession of both male and female sexuality,[55] which is equated with third-sex sexuality. In our survey of the canonical literature we did not encounter any reference to actual bisexual practices of third-sex persons. In contrast, those doxographers who discuss third-sex sexuality universally characterize it as bisexual, and with a single exception ignore the possibility of an exclusive orientation toward males, even though desire for males was the only orientation recognized in canonical works for such persons.[56]

What is of particular interest in the treatment of same-sex sexuality is that its practitioners were not considered to be third-sex persons per se, but rather males endowed with the third-sex sexuality (*napuṁsakaveda*), that is, desire for both males and females. Since *napuṁsakas* are by definition a third sex, they presumably could be considered "homosexual" only if they had sex with another *napuṁsaka,* which is a possibility not entertained in the literature. This prompts the question as to whether the Jains were able to draw a meaningful distinction between *napuṁsakas* who possessed third-sex sexuality and males, that is, non-*napuṁsakas,* who possessed third-sex sexuality by virtue of their participation in same-sex sexual behavior. We have already seen that in the late canonical period a distinction had been made between the masculine *napuṁsaka* (*puruṣanapuṁsaka*) and the effeminate *napuṁsaka* (*paṇḍaga* or *klība*), which allowed for the former's ordination. This distinction was more clearly drawn in the exegetical literature.

The masculine *napuṁsaka* differs from his effeminate counterpart in more than mere appearance and behavior, but in sexual practice as well. We think it accords with the evidence to infer that the sexual role of the effeminate *napuṁsaka* as portrayed in the canonical literature was as the receptor in acts of oral or anal intercourse. On the other hand, the masculine *napuṁsaka* is both active and passive (*paḍisevati paḍisevāveti*),[57]

[53] *Annamannaṁ Karemāṇe.* This is the traditional interpretation of *Bṛh Sū* 4.2, although a sexual infraction may not have been originally meant; see Walther Schubring, *Das Kalpa-Sūtra* (Leipzig, 1905), p. 43.

[54] Abhayadeva on *Ṭhā* 201.

[55] See *Bṛh Bhā* 5026: "āsaga-posagasevī, keī purisā duveyagā hoṁti."

[56] In his commentary on *TS* 8.10 Siddhasena remarks that the *napuṁsakaveda* takes many forms; "for one person, there is the desire which has both men and women for its object . . . while for another there is the desire for men only (*puruṣeṣvevābhilāṣaḥ*)."

[57] *Nisī Cū* 3507. *Paḍisevāveti;* i.e., he causes someone else to commit an offense upon him; cf. the Buddhist *Mahāvagga* 1.59.15–17 (Nava Nalanda edition) where a hermaphrodite is denied ordination because "he commits [*karoti*] and causes [others] to commit [*kārāpeti*]." As explained by Buddhaghosa in *Samanta* 3.1078 (Nava Nalanda edition),

and it is his active behavior, we believe, which makes him male. In this case the explanation of third-sex sexuality as a combination of both male and female sexualities makes sense; the passive employment of the mouth and anus is analogous to the use of a woman's *yoni* in the expression of female sexuality, while acting as the penetrator is the expression of male sexuality. It is for this reason, we believe, that when homosexual acts are reciprocal the participants are considered males, while purely receptive behavior is characteristic of the effeminate *napuṁsaka*. Since the exegetical literature explicitly ascribes the commission of homosexual acts to the possession of third-sex sexuality, we can only conclude that the third sex was tacitly admitted by the Jains to be the homosexual sex. In this view then, sexual behavior becomes the defining characteristic of membership in the class of third-sex persons.[58]

DISENTANGLING SEX, SEXUALITY, AND GENDER

Although we have found that bisexuality, as the defining characteristic of third-sex sexuality, conceals an essentially homosexual core, Jain scholastics were also led by the exigencies of their system to posit a universal potential for a bisexual orientation. In this view persons are not endowed at birth with a fixed and unchanging sexual orientation toward either males or females but are capable of responding sexually to persons of either sex. This position was reinforced by the crucial distinction that Jain authors made between biological sex and psychological gender.

By the fifth century C.E. the Jains had distinguished between biological sex (*dravyaliṅga*), marked by the primary and secondary sexual characteristics, and psychological gender (*bhāvaliṅga*),[59] which was held to be the characteristic psychic makeup of a particular sex, including its sexuality. Thus, for example, the gender-typical female psyche (*strībhāva*) includes tenderness, timidity, passion, pride, and inconstancy, as well as the sexual desire for men (*puṁskāmana*).[60] No other Indian system of thought separated these two aspects of sex and gender. As a consequence sex assignment as a matter of categorization on the basis of primary and secondary sexual characteristics was deemed inadequate, because it fails to include such psychological characteristics.[61] Once biological sex and psychological gender were distinguished it was natural, given the general tendency of the Jain system, to assume that they were occasioned by different kinds of causes.[62] There is then no logical necessity for agreement between the two, a supposition that is confirmed in the words of one text, appealing to experience: "While biology and psychology are congruent in a majority of cases, they are not always so."[63] Thus, a biological male (*dravyapuruṣa*) need not necessarily be a male psychologically (*bhāvapuruṣa*), that is, endowed with male sexuality, but he may in fact experience female or third-sex sexuality, and the same will be true, mutatis mutandis, for the two other sexes as well.[64] This view, with a single, notable exception, is, as we shall see, maintained by both Jain sectarian divisions. In addition, the inadequacy of making a sex assignment based on primary and secondary sexual characteristics also extends to gender role markers as well, such as gender-typical clothing, behavior, language, and interests.[65]

"'Commits': With the male sexual organ he commits a sexual transgression with women; 'Causes to commit': Having incited another, he causes [another] to commit [a sexual transgression] in his own female sexual organ."

[58] The only reference to bisexuality that we have encountered is at *Nisī Bhā* 3604 (= *Bṛh Bhā* 5171) where the unmale's bisexuality is an argument against ordination since it makes it impossible for him to dwell as a monk among men, or a nun among women.

[59] See Jaini, *Gender* (n. 23 above), pp. 11 ff. On the terms *dravya* and *bhāva* as analytical categories referring to the material and the mental aspects of what is being analyzed, see Ludwig Alsdorf, "Nikṣepa—a Jaina Contribution to Scholastic Methodology," in his *Kleine Schriften*, ed. Albrecht Wezler (Wiesbaden, 1974), pp. 257–65. The consideration of the soul from the point of view of sexual feelings or sexuality is fundamental to the Jain canonical literature of both schools; cf. the Śvetāmbara *Paṇṇa* 8.6, and the Digambara *Saṭkh* 1.1.101 ff. Although *dravya* and *bhāva* as analytical categories are common to both Śvetāmbaras and Digambaras, the characterization of the primary and secondary sexual characteristics as *dravyaliṅga* ("material [sexual] mark") and sexuality as *bhāvaliṅga* ("psychological [sexual] mark") belongs to the Digambara. For what is probably their earliest appearance see Pūjyapāda (sixth century C.E.) on *TS* 2.52. The Śvetāmbaras refer to the material and psychological sexual marks as external (*bāhya*) and internal (*ābhyantara*); see *Nisī Cū* 3570 and *BṛhṬī* 5147. For Pūjyapāda's commentary on the *TS* we have consulted the translation of S. A. Jain, *Reality* (Calcutta, 1960).

[60] See Akalaṅka on *TS* 8.9. Similar qualities were considered to be part of the male or female "nature" by seventeenth-century European medical experts; see Daston and Park (n. 8 above), p. 428.

[61] See n. 60 above. *Viśeṣāvaśyakabhāṣya* (*Vi Āva Bhā*) 2564 points out that members of the third sex have such masculine characteristics as a beard, and that male dress, e.g., may be worn by women, so that gender assignment cannot be made on the basis of such external criteria. As for the other possible criteria that we looked at before, e.g., the possession of conceptive capacity as the essential marker of femaleness, this too is rejected on the grounds that prepubescent girls or postmenopausal women could not then be regarded as female; see Pūjyapāda on *TS* 2.52.

[62] Biological sex (*dravyaliṅga*) is brought about by *nāmakarma*, whereas psychological sexuality (*bhāvaliṅga*) results from the *nokaṣāyakarma;* see esp. Akalaṅka on *TS* 2.50–51.

[63] *Gommaṭasara* (Jīvakāṇḍa) 271.

[64] *Nisī Bhā* 3571 (= *Bṛh Bhā* 5148): "The special characteristic is that each of the sexualities [*vedas*] can be independent of its proper locus and be present in the other two loci." For example, a woman can equally have a female sexuality, male sexuality, or third-sex sexuality, and the same is true for men and third-sex persons. For the Śvetāmbara view of this issue see *Vi Āva Bhā* 2565 (cited by Abhayadeva on *Ṭhā* 128), where male sexuality is the example, and *Nisī Bhā* 3570 (= *Bṛh Bhā* 5147) where third-sex sexuality is the example.

[65] Although the *Vi Āva Bhā* 2564 mentions only male dress (*puruṣaveṣa*) that can be worn, e.g., by women, the intention is clear. For a description of the stereotypically feminine gender characteristics, see *Nisī Bhā* 3569–70 (= *Bṛh Bhā* 5146–5147).

Such a separation of sexuality from physiology, and of both from the gender-role signs believed to accompany each of the sexes, marks the mature phase of the Jain creation of sexuality and is maintained by both Śvetāmbaras and Digambaras. This viewpoint came to play a role of great importance in the selection of candidates for ordination and in the debates between the Śvetāmbaras and the Digambaras over the ordination of woman and their capacity to attain spiritual liberation (below, pp. 379–81).

SEXUALITY AND MONASTIC ORDINATION

During the formative centuries of the Jain religion the rules concerning the admissibility of persons to the order were fairly simple; all males were considered worthy of ordination with three exceptions: the effeminate (*paṇḍaka*), the sexually defective (*klība*), and the ill (*vyādhita;* see above). One of the hallmarks of the developed Śvetāmbara exegetical literature is a complex schema of those who are and are not fit to be ordained: among males, eighteen types are denied ordination, among women, twenty, and among the third sex, ten.[66] These three lists are basically two: that of the eighteen males, to which two further restrictions pertaining only to woman are added, yielding the twenty types of unordainable women, and that of the third sex. Common to both lists are the original three nonordainable categories.[67] That the three are found included in the list of nonordainable males is indicative of the original view, which saw them essentially as defective males, that is, "unmales."

So far as the list of *napuṁsaka*s is concerned, the ten nonordainables are part of a larger list of sixteen, the members of which do not differ greatly from types recognized by Buddhist and Brahmanical scholastics.[68] For the Jains as well, the third sex has come to comprise a rather

[66] *Nisī Bhā* 3506–8, 3561–62 ff. On the persons not qualified to be ordained, see Deo, *History* (n. 39 above), p. 140. The Digambara view of eligibility appears to be quite straightforward; if a man is without genital defects and virile he is ordainable, but not if he is overly libidinous; essentially, a man may be considered unfit if for any reason his ordination would bring the community into disrepute. *Napuṁsakas,* i.e., those who are physically third sex (*dravyanapuṁsaka*), are denied ordination because, like women, they cannot give up the wearing of clothes; see *Jainendrasiddhāntakośa,* s.v. *pravrajyā, veda.*

[67] With *napuṁsaka* instead of *paṇḍaka* as in *Bṛh Sū* 4.4 and *Ṭhā* 202; see Abhayadeva on *Ṭhā* 202. Included among both unordainable men and women is the *napuṁsaka.* By the former a *napuṁsaka* in the guise of a male is meant as opposed to a *napuṁsaka* in the guise of a *napuṁsaka,* i.e., effeminate and/or transvestite; *Nisī Cū* 3736; also the commentary on *Pravacanasāroddhāra* 791. The female *napuṁsaka* essentially just fills a slot and nothing more is heard of her; according to *Nisī Cū* 3508 the female *napuṁsaka* experiences the *napuṁsakaveda* as well as the *strīveda.*

[68] The sixteen types of *napuṁsaka*s, according to the *Bṛh Ṭī* 5166–67, are (1) *paṇḍaka,* (2) *vātika,* (3) *klība,* (4) *kumbhin,* (5) *īrṣya,* (6) *śakuni,* (7) *tatkarmasevi,* (8) *pākśikāpāk-*

heterogenous class of individuals, all of whom are anomalous in some aspect of their sexual anatomy, physiology, or behavior. What is of interest is that for the most part these are males who are "blocked" in the exercise of their sexuality (*niruddhaveda*) in one way or another owing to their performance of unvirtuous actions in the past and are thus "transformed" into members of the third sex.[69]

The separation of sexuality from morphological sex and gender role had implications for the organization of the mendicant community as well. Since appearance was no longer an infallible guide in deducing a person's sexuality, we find that in the Śvetāmbara rite of ordination for monks, the sexuality of the prospective candidate is to be ascertained first, by questioning the candidate himself, and then, if there remains some doubt, by interrogating his friends. The candidate would be asked what was it with which he was disgusted (*nirveda*) that led him to seek renunciation; this might result in the admission that it was his third-sex sexuality that motivated his desire for renunciation. Again, his friends might be asked why such a strong, healthy young man would seek renunciation, to which the answer might be that his sexuality was the cause. The fact that third-sex sexuality was seen as a motivating factor for a person to renounce the pleasures and ties of ordinary society is revelatory of an awareness of the internalized disapproval and social stigma that attached to such sexuality. The candidate might also be told at the outset of the interview that third-sex persons are unfit for ordination, so that if he was one he would withdraw, believing himself to have been somehow discovered. He would also, of course, be examined for marks of effeminacy in speech, deportment, and interests.[70]

One of the grounds on which third-sex persons may be denied ordination is that of their excessive libidinousness, which is believed to render them incapable of maintaining their vows.[71] This hyperlibidinousness, which as we have seen was ascribed to the bisexual character

śika, (9) *saugandhika,* (10) [*āsakta*], (11) *varddhita,* (12) *cippita,* (13) *mantreṇopahata,* (14) *auṣadhyā upahata,* (15) *ṛṣiṇā śapta,* (16) *devena śapta;* cf. Zwilling (n. 29 above), p. 204; Sweet and Zwilling (n. 9 above), p. 593. Another, shorter list of fourteen *napuṁsakas,* with a few types not found in the longer list, is to be found in the *Aṅgavijjā* 9.3.400–404; see *Aṅgavijjā* (Banaras, 1957), p. 73.

[69] Compare *Nisī Cū* 3577 and esp. *Bṛh Ṭī* 5167: "*ete sarve 'pi* niruddhavastāyaḥ" (!!; read *niruddhavedāḥ* following *Ṭī* on 5166) "kālāntareṇa napuṁsakatayā pariṇamanti."

[70] *Nisī Bhā* 3564–70b (= *Bṛh Bhā* 5141–47b). In contemporary Thai Buddhism, candidates for monkhood are routinely questioned about their sexuality in order to screen out third-sex persons; see Peter A. Jackson, "From *Kamma* to Unnatural Vice: Thai Buddhist Accounts of Homosexuality and AIDS" (paper presented at the International Thai Studies Conference, London, July 1993).

[71] See, e.g., Abhayadeva on *Ṭhā* 202.

of third-sex sexuality, provided the rationale for the exclusion of third-sex persons from living in a same-sex community, inasmuch as normative males and females were assumed to be safe from sexual temptation in gender-segregated communities, but the bisexual third-sex person would be at risk himself, and a source of danger to others, among either males or females.[72] However, it must be said that the prime concern here, as in the many rules regulating contacts between monks and *napuṁsakas,* was the fear that the stigma of the third-sex person's socially transgressive behavior might be extended to the mendicant order as a whole. There is, for example, an anecdote about rowdy young people taunting Jain mendicants as ostensibly being *napuṁsakas,* which results in a brawl; such violent conduct is, of course, totally abhorrent to Jain ethics and decorum.[73] There is evidence that monks and mendicants were, in fact, associated in the popular mind with "third-sex" sexual practices.[74]

Sexuality also figured in determining the worthiness of third-sex persons to serve either as lay disciples or as donors from whom a monk may accept food, clothes, or lodging. It was first necessary to distinguish those who dress as men from those who dress as women, and those who are fornicators (*pratisevina*) from those who are not (*apratisevina*). While conventionally masculine *napuṁsakas* may be either fornicators or not, transvestites are most definitely (*niyamāt*) considered to be fornicators. Masculine *napuṁsakas* may be acceptable as lay disciples (*saṁjñin*);[75] presumably this applies only to the chaste among them, since it is only from a chaste male *napuṁsaka,* for instance, that a monk may accept clothes.[76] However, in the rules concerning lodging, male *napuṁsakas* are regarded as males, and the transvestites as women.[77]

In the course of time the ban against the ordination of all third-sex persons was ameliorated to a very large extent. First, exceptions were made on purely practical grounds, such as when the candidate was known to be especially well connected, for example, to the local ruler, or had special expertise in an area such as medicine or administration, or was politically astute and could protect the community during times of royal disfavor.[78] Second, a relaxation of the ban was based on a distinction having been drawn between those third-sex persons who were capable of controlling their sexuality and those who were not, which was the same distinction that was made in the case of suitable donors to monks. Among the sixteen subtypes of third-sex persons referred to earlier, ten were regarded as uncontrollable in their passions and hence unsuitable for ordination, while the remaining six were considered fit.[79] By the seventeenth century this distinction was explicitly linked to congenital or noncongenital status, with the latter permitted ordination because "for the most part they experience male sexuality alone." In fact, by this time the rigid strictures against the association of third-sex persons with monks, which we found in the earliest texts, had now gone by the boards even in the case of the congenital third-sex types, who were now permitted to assume the vows of a layman.[80] We can see the radical change of attitudes in Jain texts over time, from that of total nonacceptance to a nearly total acceptance of third-sex persons as participants in the Jain community.

[72] This discussion is found in *Nisī Cū* 3602–4; *Bṛh Ṭī* 5169–71.

[73] See *Nisī Cū* 3587; *Bṛh Ṭī* 5163. Scenes of taunting of third-sex persons by children and adolescents are common in India today; see Nanda (n. 20 above), pp. 9, 50, 100.

[74] For example, see sculptural representations of mendicants who are sexually aroused by laymen in Alain Danielou, *La Sculpture Érotique Hindou* (Paris, 1973), pp. 202–5; and the story about the third-sex monk who aroused social disapproval in Zwilling, pp. 207–8.

[75] *Bṛh Ṭī* 2570. Compare *Nisī Cū* 5214.

[76] *Bṛh Ṭī* 639.

[77] *Nisī Bhā* 5217–24 (= *Bṛh Bhā* 2572–79).

[78] *Bṛh Bhā* 5173–74, quoted in Deo, *Jaina Monastic Jurisprudence* (n. 37 above), p. 14.

SEXUALITY AND THE DEBATE OVER WOMEN[81]

Of the two traditions, the Śvetāmbaras may be reckoned as the more liberal regarding the position of women, given their acceptance of women as worthy of full ordination and capable of attaining liberation in the female body.[82] The opposite position was taken by the Digambaras, for whom biological male sex is indispensable for both full ordination and liberation. Despite the fact that women's incapacity for liberation is a central tenet of the Digambaras, their principal scripture,

[79] *Nisī Bhā* 3561–62, and *Abhidhānarajendra,* s.v. *napuṁsaka.*

[80] See *Yuktiprabodha,* translated in Jaini, *Gender* (n. 23 above), pp. 177–78.

[81] This debate has been explicated and very fully exposed through translations of extracts from the principal commentaries in Jaini, *Gender.*

[82] Of course, Western political dichotomies such as liberalism-conservatism have at best heuristic value in this context. Despite their theoretical spiritual equality, Jain female mendicants are formally absolutely subject to the control of male mendicants among both sects (Dundas [n. 12 above], p. 52) and the modern Śvetāmbara mendicants are much more socially conservative (i.e., hierarchical, tradition-bound) than the more individualistic Digambaras—see John E. Cort, "The Śvetāmbar Mūrtipūjak Jain Mendicant," *Man* 26 (1991): 651–71. Although female mendicants are much more numerous and appear to have more social influence among the Śvetambaras (see Jaini, *Gender,* p. 26), it is a curious fact that the most prominent woman leader of a Jain sect, Campabahen Mataji, was a neo-Digambara (Dundas, p. 231). Recent developments include a nun who is head of a Śvetāmbara Sthānakavasi subsect, and a nun appointed, for the first time, to the rank of *ācārya* (Paul Dundas, letter to Leonard Zwilling and Michael J. Sweet, July 17, 1995). Furthermore, the Jains as a whole accord higher social and legal status to women than do Hindus (Dundas, p. 5).

the *Ṣaṭkhaṇḍāgama,* contains a passage suggesting the opposite.[83] In attempting to explain this away the Digambaras based their stand on the separability of biological and psychological sex, arguing that the word *maṇusyiṇi* in the offending passage meant not "woman," as it ordinarily does, but "a man with a woman's sexuality (*strībhāva*)."[84]

The Digambaras also used the same argument to deny the literal sense of those passages in the texts of their adversaries, which spoke of the liberation of third-sex persons,[85] again claiming that what was meant was actually a biological male with the sexuality of a woman or a *napuṁsaka*.[86] This view was attacked by Śākaṭāyana, of the independent Yāpanīya sect, one of the key figures in the female liberation debate, who argued that there is a correspondence between sexuality and physical gender such that female sexuality, for example, can only arise in a biological female.[87] However, he presciently observed that persons are, at various times, capable of being sexually aroused by the opposite sex, the same sex, or even by animals. The reason for this is not the momentary acquisition of some other sexuality—since one who in the absence of a human partner has sex with an animal cannot be said to have suddenly acquired an animal sexuality—but rather the polymorphous nature of that person's sexuality itself (*svakaveda*).[88] In what appears to be a rejection of the very notion of three individual sexualities, he claims that sexuality can no more be distinguished along gender lines than can other emotional states like anger or pride.[89]

Śākaṭāyana's conception of sexuality is that it is fluid and innately un-

[83] See *Ṣaṭkh* 1.1.92–93; text and translation in Jaini, *Gender,* pp. 110–11. Despite their rejection of the possibility of *mokṣa* for women, the worship of female deities is widespread among the Digambaras, as it is among the Svetāmbaras (Dundas, pp. 182–83).

[84] In Śākaṭāyana's *Strīnirvāṇaprakaraṇa* (*SNP*) in *Strīnirvāṇa-Kevalibhuktiprakaraṇe* (Bhavnagar, 1974), p. 30; the cited scripture has not been identified. For translation see Jaini, *Gender,* p. 76. As a representation of this debate, one may note the figure of Malli[nātha], whom the Śvetāmbaras claim as the sole female among the twenty-four Jinas of our age, but whom the Digambaras insist is male (Jaini, *Gender,* pp. 14–15). Nevertheless, even the Śvetāmbara representations of this figure (with one exception) are male, or at least without any distinguishing female characteristics, perhaps to accord with the doctrine of the genderlessness of the *jīva* (soul) after final liberation (see Marcus Banks, "Representing the Bodies of the Jains," in *Rethinking Visual Anthroplogy,* ed. Marcus Banks and Howard Murphy [New Haven, CT, in press]).

[85] In his comment on *Paṇṇa* 1.16 (on which see n. 48 above), Malayagiri explains that the three sexes are here so called on the basis of their bodily development, rather than on psychological sexuality (*veda*) or dress (*nepathya*), i.e., gender role. He contrasts this with the Digambara view that liberation can be attained only by those with a male body.

[86] *SNP,* p. 30. Translation in Jaini, *Gender,* p. 76, and also pp. 163–65.

[87] *SNP,* p. 36. Translation in Jaini, *Gender,* p. 86.

[88] *SNP,* pp. 37–38. Translation in Jaini, *Gender,* pp. 89–90.

[89] *SNP,* p. 35. Translation in Jaini, *Gender,* p. 84.

differentiated; however, this was not the belief that prevailed. The Śvetāmbaras, in accepting the notion of three distinct sexualities, argue that if a man with female sexuality can attain liberation, then there can be no grounds for denying the same possibility to a woman with the female sexuality natural to her, or even to a woman with male sexuality.[90] Thus, the Śvetāmbaras accept that all people have the potential for liberation, including women and those who would now be labeled as lesbians, gay men, and bisexuals. Same-sex desire and behavior was, as we have seen, ascribed to a person having the sexuality of the other sex, or having two sexualities.[91]

JAIN AND MODERN SEXUALITIES

It remains for us to survey briefly the implications of these Jain ideas and attitudes for gender studies and the history of sexuality in general. Taken as a whole, they compel a revision of the oft-repeated assertion that a systematized and socially mobilized discourse on gender and sexuality was first created by modern Europeans.[92] A recent version of this argument refers to the pre-British colonial period: "Prior to that time there was sex, passion, and sensuality, to be sure, and there was an elaborate discourse on the art of sex—replete with categories and modes of classification . . . but there was no sense in which an apparatus of sexuality provided a definitive moral yardstick against which to measure the appropriateness of various acts or the status of actors."[93] To take this stance, which synechdochically identifies the whole of Indian civilization with the worldview of the treatises on erotics, is to fall into an Orientalist fantasy of viewing non-Western cultures as the sensual Other in which, as Foucault imagines, "pleasure is not considered in relation to an absolute law of the permitted and the forbidden, nor by reference to a criterion of utility."[94] This fantasy can only be sustained as long as one ignores the elaborate sociocultural mechanism for the control of sexual-

[90] *Yuktiprabodha,* translated in Jaini, *Gender,* p. 164.

[91] *Bṛh Bhā 5026* (see n. 55 above) cited by Abhayadeva on *Ṭhā* 201. Homosexual activity (*annamannaṁ karemāṇe*) between monks is one of only three offenses punishable by expulsion from the order (*pārañciya*), the other two being criminality (*duṭṭha*), i.e., committing a deadly offense against one's superior, or rape, and neglect (*pammatta*) of the rules regarding food and sleep. Even pious laypeople are supposed to restrict themselves to conventional heterosexual intercourse with their wives; see Jaini, *Jaina Path* (n. 12 above), p. 176.

[92] Among the many articulate proponents of this proposition are Jeffrey Weeks, *Against Nature* (London, 1991), esp. pp. 10–45, 68–85. See also the works cited in n. 1 above.

[93] Joseph S. Alter, "Celibacy, Sexuality, and the Transformation of Gender into Nationalism in North India," *Journal of Asian Studies* 53 (1994): 45–66.

[94] Foucault (n. 1 above), p. 57.

analogues in numerous contemporary cultures to be mere scholastic speculations.[102] Then too, it seems intuitively apparent that the Jains' liberation of sexuality from a necessary bond with biology, breaking through many centuries of cultural presupposition, must have sprung at least in part from observations of real people, whose sexual behaviors were not commensurate with their physical or gender-role characteristics and thus did not fit the old paradigm. To what degree these texts mirrored the life of their times remains to be determined by further cross-disciplinary investigations.[103] What is incontrovertible is that the writers of these texts, using the raw materials supplied by Indian culture as well as by their experience, constructed elaborate discourses on the nature of sexuality, sex, and gender that offered novel ways of thinking about these crucial and enigmatic facets of human experience.

[102] There is some corroboratory evidence in related areas; e.g., the fact that among the Śvetāmbaras female mendicants greatly outnumber males and exert strong influence on the laity; see Jaini, *Jaina Path* (n. 12 above), p. 246; Reynell, pp. 60–61; and N. Shanta, *La Voie Jaina* (Paris, 1985), pp. 443–44. On the other hand, the Digambaras have few female ascetics, of limited social authority (Dundas, p. 52; Jaini, *Gender* [n. 23 above], p. 26). This lends credence to the hypothesis that there is some connection between the great textual tradition and social realities.

[103] Additional anthropological, literary, and artistic data will be extremely helpful in fleshing out the social history of the third sex among the Jains. Areas for investigation include the enormous corpus of Jain popular literature, consisting of religious legends and traditional tales, which may throw significant light on questions of gender and sexuality. Further study of Jain art (see Banks [n. 84 above]) is likely to yield important findings, as would psychological and sociological research on sex and gender roles, perceptions, and attitudes among Jain laity and mendicants. There appears to be no existing ethnographic research about third-sex persons among the Jains (Serena Nanda, letter to Leonard Zwilling and Michael J. Sweet, March 1994).

Gender and Male Same-Sex Erotic Behavior in British North America in the Seventeenth Century

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THE HISTORICAL PROBLEM

THE HISTORY OF same-sex erotic behavior in the United States before the twentieth century is largely unknown.[1] Buggery in the barn was not the sort of thing that would tend to be recorded for posterity and it would not reach the courts if the sexual partners could help it. Indeed, in British North America the sodomy and buggery statutes seem to have been largely unenforced. Two decades of scholarly debate between sociobiologists, who view homosexuality as grounded in biology, and social constructionists, who view sexuality as constructed, implanted, or manufactured, has generated methodological tools that make it possible to make reasonable arguments based on the evidence we do have for colonial British North America. Gender studies, anthropology, and comparative history have demonstrated the ways in which sexual behavior and the meanings ascribed to that behavior depend on local conditions.[2]

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[1] Among the works dealing with twentieth-century gay, lesbian, and queer history are Martin Duberman, *Stonewall* (New York, 1993); Lillian Faderman, *Odd Girls and Twilight Lovers: A History of Lesbian Life in Twentieth-Century America* (New York, 1991); Allan Bérubé, *Coming Out Under Fire: The History of Gay Men and Women in World War Two* (New York, 1990); John D'Emilio, *Sexual Politics, Sexual Communities: The Making of a Homosexual Minority in the United States, 1940–1970* (Chicago, 1983).

[2] For the leading sociobiologists, see Simon Levay, *The Sexual Brain* (Cambridge, MA, 1993), and "A Difference in Hypothalamic Structure between Heterosexual and Homosexual Men," *Science* 253 (1991): 1034–37; John Money, *Gay, Straight, and In-*

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ity that is evidenced by Indian texts, as well as by historical and anthropological data. Not only was "elaborate discourse" about sexuality conducted by the Jains, as well as by Buddhist and Brahmanical authors, but this discourse was mobilized by Brahmanical law as well as by Buddhist and Jain monastic jurisprudence, all of which had clear social and religious interests in the definition and control of sexuality.[95] In the Jain case, control was enforced by the examination of signs of nonnormative sexuality and gender as a requirement for ordination, as discussed above, and also through both formal rules for proper lay and mendicant sexual and gender-role behavior and powerful, informal social rewards and sanctions.[96]

In support of the social constructionist viewpoint, however, the Jain material provides additional evidence for the culturally determined and variable nature of sexual/gender identities and categories. Characteristics such as cross-dressing, impotence, physiological sexual anomalies, and same-sex orientation, which in the West are generally signifiers of a perverse or pathological masculinity or femininity, indicate membership in a discrete third-sex category in Indian culture as a whole, and among the Jains in particular. Nor is the Jain assignment of "genuine" masculinity or femininity on the basis of sexual object choice isomorphic with contemporary sexological theory.

In attempting to make sense of the differences in biological sex, gender role, sexual behavior, and orientation that they observed in their environment, and stimulated as well by internal contradictions and questions in the sexological theories that they inherited, some Jain scholars came to conclusions at variance with the received ideas of their time. The most significant of their innovative ideas were that sexuality and sexual object choice were separate from biological sex and gender role, and that bisexuality as well as homosexuality and heterosexuality were a possibility for both males and females, with bisexuality normatively characterizing the highly libidinous third sex. This viewpoint makes up the uniquely

[95] On religio-legal sanctions against homosexual conduct in *dharmaśāstra,* including loss of cast and inheritance rights, see Wendy Doniger and Brian Smith trans., *The Laws of Manu* (New York, 1991), pp. 58–59, 68, 92–93, 177, 220, 267–68. On penalties in Buddhism, see Zwilling (n. 29 above), p. 207.

[96] While the Buddhist monastic communal confession of sins, including sexual misdeeds that may result in expulsion from the order, takes place once a fortnight, on full and new moon days (*poṣadha*), the comparable Jain observance (*paḍikakamaṇa*) is performed twice each day; Tatia, *Aspects of Jaina Monasticism* (n. 32 above), pp. 331–33. On lay codes of conduct, see Dundas (n. 12 above), pp. 161–65; on informal social control, see Josephine Reynell, "Women and Reproduction of the Jain Community," in *The Assembly of Listeners: Jains in Society,* ed. Michael Carrithers and Caroline Humphries (Cambridge, 1991), pp. 62–65.

Jain contribution to Indian sexology. It is an interesting parallel development that the same combination of libidinousness and bisexuality was also used to describe the anomalous sexual category of the *mollis* in the Greco-Roman medical literature.[97]

The acknowledgment of multiple possibilities for sexuality regardless of biological sex or gender is in accord with (although not necessarily related to) the Jain philosophical tenet of "non-onesidedness" (*anekāntavāda*), which upholds a multifaceted and situationally determined view of reality.[98] The Jain explanation of same-sex orientation as "female sexuality" in a biological male, or male sexuality in a biological female, is quite analogous to the late nineteenth- and early twentieth-century sexologists' understanding of "the homosexual" as "a female soul in a male body," or vice versa.[99] The Jains' ability to differentiate between a psychological sexuality or sexual orientation and biological sex foreshadows the complex typologies of modern sexological theory, with the proliferation of categories such as gender role, sexual identity, sexual orientation, and genetic and morphologic sex, which may or may not be mutually commensurate.[100] Their attribution of distinct biological and "genetic" (i.e., karmic) causes for the three types of sexuality implies that there is a unified entity that is the source of sexual expression, a hallmark of sexuality in its modern sense.

Although the literature surveyed here was all written by male renunciants, it may offer at least a glimpse of social reality as they observed it. Descriptions of organizational expedience in accepting sexually nonnormative individuals into the order if they were not too effeminate, followed the rules, and/or had some valued skill,[101] or vignettes of a third-sex mendicant carrying on bitchily and seductively, have too many

[97] Caelius Aurelianus (n. 5 above), p. 901. On this interpretation see Halperin, *One Hundred Years* (n. 1 above), p. 23.

[98] See Jaini, *Jaina Path,* pp. 93–94; and Dundas, pp. 197–200.

[99] See Magnus Hirschfeld, *Geschlechtskunde: Auf Grund dreißigjähriger Forschung und Erfahrung bearbeitet,* 2 vols. (Stuttgart, 1930), 1:543–601; and Harry Oosterhuis, "Homosexual Emancipation in Germany before 1933," in *Homosexuality and Male Bonding in Pre-Nazi Germany,* ed. Harry Oosterhuis and trans. Hubert Kennedy (New York, 1991), pp. 1–2, 12–15.

[100] As a representative example, see Holly Devor, "Sexual Orientation Identities, Attractions, and Practices of Female-to-Male Transsexuals," *Journal of Sex Research* 30 (1993): 303–15.

[101] *Nisī Bhā* 3604–7 (= *Bṛh Bhā* 5171–74); and Deo, *Jaina Monastic Jurisprudence* (n. 37 above), p. 14. The principal of social expedience was widely used in Jain judgments on ordination, as in passages cited in Collette Caillat, *Atonements in the Ancient Rituals of the Jaina Monks* (Ahmedabad, 1975), p. 58, which praise the admission of physically attractive, socially powerful, or technically skillful male postulants to the order.